

**SELLER'S NOTICE TO BUYER TO REMOVE
SALE AND TRANSFER OF TITLE CONTINGENCY (BUMP NOTICE)**

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**BROKER COMMISSIONS AND COMPENSATION ARE NOT SET BY LAW OR BY ANY REALTOR® ASSOCIATION
OR MULTIPLE LISTING SERVICE AND ARE FULLY NEGOTIABLE.**

When signed, this document becomes legally binding on you. You may wish to consult your attorney.

SELLER _____ BUYER _____

SELLER _____ BUYER _____

PROPERTY _____ CONTRACT DATE _____

To Buyer:

Seller notifies Buyer that Seller has received and accepted another purchase offer for the Property.

Seller further notifies Buyer that Buyer is to:

- (A) remove the sale and transfer of title contingency in the contract between Seller and Buyer (the "Contract") regarding Buyer's existing property located at _____ (the "Existing Property") by written notice to Seller within _____ calendar days (the "Bump Period") from receipt of this notification, and
- (B) provide Seller within the Bump Period written proof of satisfaction of (x), (y) or (z):
- (x) (1) Buyer has obtained a contract for sale of the Existing Property which is not subject to any unsatisfied contingencies, (2) all contingencies in the Contract between Seller and Buyer for the benefit of Buyer (other than any mortgage contingency or mortgage assumption contingency) have been satisfied or waived by Buyer, and (3) Buyer notifies Seller in writing with proof of satisfaction of (1) and (2) herein;
- (or)
- (y) (1) Buyer has accepted a Commitment (as defined in the Contract between Seller and Buyer) which Commitment does not require the sale and transfer of title of the Existing Property as a condition of the mortgage loan funding, (2) all contingencies in the Contract between Seller and Buyer for the benefit of Buyer have been satisfied or waived by Buyer, and (3) Buyer notifies Seller in writing with proof of satisfaction of (1) and (2) herein;
- (or)
- (z) (1) Buyer has immediately available U.S. funds in the amount of the purchase price, (2) all contingencies in the Contract between Seller and Buyer for the benefit of Buyer have been satisfied or waived by Buyer, and (3) Buyer notifies Seller in writing with proof of satisfaction of (1) and (2) herein.

If the Buyer does not satisfy (A) and (B) within the Bump Period, Buyer's rights under the Contract between Seller and Buyer shall end, and Seller shall be free to proceed with the other purchase offer and Buyer's deposit shall be returned.

SELLER _____ DATE _____ SELLER _____ DATE _____

We acknowledge receipt of this Bump Notice:

BUYER _____ DATE _____ BUYER _____ DATE _____

(Note to REALTOR®: If Buyer does not acknowledge receipt of this Bump Notice by signing above, complete the Affidavit of Service on back.)

cc: Seller's and Buyer's attorneys, if any, designated on the Contract.

AFFIDAVIT OF SERVICE
(To Be Used When Buyer(s) Do Not Sign Bump Notice)

1. I am over the age of 18 years and am not a party (Buyer or Seller) to the Purchase and Sale Contract for the Property located at _____.

2. On _____ (MM/DD/YYYY), at _____ ☐ a.m. ☐ p.m., I delivered a copy of this Bump Notice to Buyer(s) (Insert Name(s)) _____
_____ personally at (Insert Location Where Served) _____.

Server of Bump Notice (Server's signature must be notarized below)

Sworn to before me this
_____ day of _____, 20 ____.

Notary Public

INSTRUCTIONS CONCERNING BUMP NOTICE

Bump Period:	Unless the parties otherwise agree in writing, the Bump Period is defined by "calendar days." A calendar day is from midnight to midnight. The Bump Period does not begin to run until midnight on the day on which the Bump Notice is delivered to Buyer.
Must the Bump Notice be Written?	Yes, pursuant to the Purchase & Sale Contract and Sale and Transfer of Title Contingency Addendum.
Who Signs the Bump Notice?	Seller; however, pursuant to the Purchase & Sale Contract, Seller's attorney may also sign the Bump Notice.
Who Delivers the Bump Notice?	Any person who is not a party to the Purchase & Sale Contract. The Listing Agent shall coordinate service of the Bump Notice.
When is the Bump Notice Served?	When Seller accepts another purchase offer; however, Seller may want to request by counteroffer that the second buyer complete inspections, mortgage pre-approval, attorney's approval, etc., prior to service of the Bump Notice on the first Buyer.
Must the Buyer Sign the Bump Notice?	No, but it is evidence of the Buyer's actual receipt of the Bump Notice. All notices pursuant to the Purchase & Sale Contract are deemed delivered upon receipt. The above Affidavit of Service should be used if Buyer refuses to sign the Bump Notice.